



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

November 17, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202203275 (Incident Date: May 21, 2022) regarding Sergeant Sun Hu, Tax No. 956744 (DADS No. 2023-29060)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that no disciplinary action is warranted in connection with the single allegation that Sergeant Sun Hu threatened an individual with the use of force.

In this matter, Sergeant Hu (at the time of the incident, he held the rank of police officer) and his partner stopped an individual from holding the emergency exit gate open within the NYC transit system. By unlawfully holding the gate open, the individual allowed several civilians to enter the subway system without paying their fares. Sergeant Hu told the individual to leave the station, but the individual failed to comply. As a result, Sergeant Hu felt threatened when the individual turned towards the officers after he was confronted for keeping the emergency door open. Accordingly, Sergeant Hu displayed his taser, as he believed that he and his partner (who was a new police officer who had just recently graduated from the Police Academy) could have been assaulted, as several violent incidents had recently occurred at this station.

Here, Sergeant Hu merely displayed his conducted electrical weapon (CEW) to gain compliance. Specifically, he drew his Taser with his left hand and pointed it towards the ground. Sergeant Hu believed that based on the individual's actions thus far, the situation could escalate quickly, and he wanted his CEW readily available in case it became necessary to use it. It is noteworthy that he quickly holstered the Taser as soon as he reassessed the situation. The display was limited to the CEW being held at Sergeant Hu's side until the situation was under control. Rather than being an improper threat of the use of force, Sergeant Hu's actions proved to be an effective de-escalation technique, as the individual immediately complied, and thereby avoided the need for Sergeant Hu to use force.

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Therefore, based on the foregoing, Sergeant Hu will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Abuse of Authority – Threat of force).

Sincerely,

A handwritten signature in dark ink, appearing to read "ASM", is written over the word "Sincerely," and the typed name below.

B Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office